

Takesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 9 January 2017 · Writ-C No. 520 of 2017 · Writ-C No. 520 of 2017 · **Writ disposed; petitioner left to avail clause 5.14 instalments**

HEADNOTE

A consumer's son who challenged recovery of unpaid electricity dues after the father's death, and then sought to pay in instalments, was left to the instalment facility under clause 5.14 of the Electricity Supply Code. The writ was disposed of without examining the demand or heir liability.

FACTUAL SUMMARY

The petitioner's father held an electricity connection from Dakshinanchal Vidyut Vitran Nigam Ltd. Arrears remained unpaid when the father died on 27 February 2015. One son, Takesh Kumar, filed this writ to challenge recovery of those dues. He had represented that he would deposit half the amount and his brother the rest; at the hearing counsel instead sought leave to pay in instalments. The distribution licensee pointed to clause 5.14 of the Electricity Supply Code as the instalment remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.14

instalment of arrears

HOLDING

A petitioner seeking to deposit unpaid electricity dues in instalments after the consumer's death may avail the instalment remedy under clause 5.14 of the Electricity Supply Code; the writ is disposed of leaving that course open. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF RECOVERY PROCEEDINGS AGAINST THE CONSUMER'S SON AFTER THE FATHER'S DEATH

The writ assailed recovery but was disposed without examining the demand or heir liability. ¶ 1

NOT DECIDED — EQUAL SPLIT OF ARREARS BETWEEN SONS

The representation that the petitioner would deposit half and his brother the rest was not adjudicated. ¶ 1